

CV-25-009269 EVITT, KENNETH BRYAN vs CITY OF MODESTO – Defendant’s Demurrer to Plaintiff’s First Amended Complaint - HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court notes the lack of opposition and is inclined to SUSTAIN the demurrer without leave to amend. Defendants’ Request for Judicial Notice is GRANTED with regard to the contents of the court’s file in the related criminal proceeding, CR23-8100. Based upon review of the moving and supporting papers, including those matters subject to judicial notice, the Court is inclined to sustain the demurrer in its entirety. Specifically, it appears that the Criminal Division’s finding of probable cause to support Plaintiff’s arrest on 8-6-23 bars his pursuit of a false arrest claim herein, based on the doctrine of collateral estoppel. (See, e.g. Greene v. Bank of America (2015) 236 Cal.App.4th 922, 933–934.) Moreover, to the extent that Plaintiff’s claims against Defendants herein are based on the alleged failure to arrest Mr. Durazo on the date(s) in question, liability on that theory is precluded by the application of Gov. Code § 846. Lastly, as the Court sees no potential for amendment to cure the defects identified herein, and Plaintiff has again failed to oppose the challenge to his pleading, the Court is inclined to DENY further leave to amend. The Court will hear from the parties on these issues at the time of the hearing. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24: ***There are no tentative rulings in Department 24*** The following is the tentative ruling for a case calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no tentative rulings in Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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